FDIC Federal Deposit Insurance Corporation

DATE: June 25, 2026

TO: Board of Directors

FROM: Jenny Traille, Acting Director
Division of Complex Institution Supervision and Resolution

Shawn Khani, Director
Division of Resolutions and Receiverships

CONCUR: Matthew P. Reed
General Counsel

SUBJECT: **Proposed Amendments to 12 CFR 360.10 – Notice of Proposed Rulemaking**

I. SUMMARY

Staff request that the Federal Deposit Insurance Corporation (FDIC) Board of Directors (the Board) approve a notice of proposed rulemaking (Proposal) to substantially amend and restate the FDIC's current resolution planning rule (Current Rule).[1] Staff also request that the Board exempt certain insured depository institutions (IDIs) from the filing requirements under the Current Rule in 2026 and 2027 in light of the ongoing rulemaking process.

The Current Rule requires covered IDIs (CIDIs) with $100 billion or more in total assets (Group A CIDIs) to periodically submit a resolution plan to the FDIC (Resolution Plan) and requires CIDIs with at least $50 billion but less than $100 billion in total assets (Group B CIDIs) to periodically submit a more limited "Informational Filing" to the FDIC that consists of a subset of the informational content required in Resolution Plans. The Proposal would increase the CIDI

[1] Codified at 12 CFR 360.10.

threshold from $50 billion to $100 billion as of the effective date of the final rule, to reflect inflation from the date of initial implementation (i.e., the April 1, 2012, effective date of the original rule) and other policy considerations, and provide for automatic future adjustments in the threshold using an indexing methodology. Additionally, the Proposal would modify the Current Rule by refocusing the requirements of the rule on information that most directly supports the FDIC's resolution readiness in the event of material distress and failure of these CIDIs and reducing the requirements regarding the content of resolution submissions provided to the FDIC.

II. BOARD ACTION REQUIRED

Board approval is required for the issuance of rules and regulations, unless otherwise delegated.[2]

III. RECOMMENDATIONS

Staff recommend that the Board:

A. Approve the Proposal and authorize its publication in the *Federal Register* for a comment period ending 60 days after publication in the *Federal Register*.

B. Exempt from 2026 filing requirements under the Current Rule: (1) Group B CIDIs that are scheduled to file Informational Filings or interim supplements (as defined in the Current Rule) due on or before October 1, 2026 (as set forth in **Attachment 1**); and (2) any IDIs that become CIDIs prior to the effective date of a final rule.

C. Exempt from 2027 filing requirements under the Current Rule: (1) all CIDIs as of the date hereof (as set forth in **Attachment 2**); and (2) any IDIs that become CIDIs prior to the effective date of a final rule.

[2] 12 U.S.C. 1819(a)(Tenth).

D. Authorize the Executive Secretary, or designee, and the General Counsel, or designee, to make technical, non-substantive or conforming changes to the text of the *Federal Register* document to ensure that the FDIC can publish this Proposal in the *Federal Register*.

IV. BACKGROUND

The Current Rule became effective in 2024 and requires CIDIs to file full resolution submissions (as defined in the Current Rule) and a subset of CIDIs to file interim supplements. In April 2025, the FDIC modified its approach to IDI resolution planning and the FDIC exempted CIDIs from certain content requirements in their full resolution submissions and interim supplements in the initial submission cycle, which began on July 1, 2025.

The FDIC issued a Financial Institution Letter on December 31, 2025 (FIL), which signaled that the FDIC would provide certain resolution submission filing exemptions, discussed in Section V, *CIDI Filing Exemptions*, below.

V. DISCUSSION

Policy Objectives

Under the Proposal, large IDIs would be required to provide targeted information most critical for resolving the institution in a cost-effective manner. The Proposal would generally eliminate requirements to provide extensive narratives and analysis, such as those related to hypothetical resolution strategies and scenarios. The FDIC's experience with past large bank failures underscores the importance of obtaining key information in advance of failure to maximize the likelihood of an optimal resolution outcome, which is typically a rapid sale, and the Proposal reflects this experience.

Pursuant to Section 7 of the Federal Deposit Insurance Act of 1950, as amended,[3] the FDIC has established a risk-based assessment framework for calculating and charging all IDIs a quarterly assessment for deposit insurance.[4] The FDIC is also issuing a separate, simultaneous proposal to revise its deposit insurance assessments framework (Assessments proposal) that would implement a resolution readiness adjustment (RRA) that would provide assessment adjustments to large or highly complex institutions, as defined in the Assessments proposal, that can (1) populate a virtual data room (VDR) within a specified period of time and (2) provide the FDIC access to an institution's service provider(s) and/or internal systems to obtain detailed bank data needed to manage and market the bank in receivership. The RRA would be applied to a large or highly complex institution's assessment rate in recognition of the expected reduction in losses to the Deposit Insurance Fund in the event of the failure of a bank that successfully completes the VDR testing exercise or provides the prescribed data access.

Recommended Changes to the Current Rule

The Proposal includes the following proposed modifications to the Current Rule, among others:

- Raise the dollar threshold determining whether an IDI is subject to the rule from $50 billion to $100 billion, to reflect inflation from the date of the rule's initial implementation in 2012 and other policy considerations, and provide for automatic future adjustments pursuant to an indexing methodology.
- Rename filings under the rule as "resolution submissions."

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[3] 12 U.S.C. 1817(b).

[4] 12 CFR part 327.

- Move all CIDIs to a three-year cycle for filing resolution submissions and obtain information on material changes relevant for the FDIC's resolution planning through the notice of extraordinary event process, rather than by relying on interim supplements.
- Eliminate the public section requirement of the Current Rule.
- Eliminate more than half of the Current Rule's "content requirements" for submissions in order to focus on basic operational information to understand structure and infrastructure of CIDIs. For example, the Proposal would eliminate:
    - Requirements focused on resolution-related hypothetical analyses and content, such as development of a strategy and valuation analysis (both of which would need to be undertaken by the FDIC in a failure) and adoption of a failure scenario (as defined in the Current Rule);
    - Other CIDI-generated resolution analyses and recommendations regarding optionality, challenges, and mitigating actions in resolution relevant to the FDIC's resolution responsibilities, such as identification of franchise components (as defined in the Current Rule) that can be separated and marketed in a timely manner in resolution, potential economic effects of the CIDI's resolution, and impact of extraordinary events on resolvability;
    - Descriptions of the CIDI's processes and procedures, including in areas such as critical services, capital structure and funding sources, communications, corporate governance, and reporting on contingency planning and similar exercises; and
    - Expectations for, and descriptions of, the CIDI's capabilities.

- Eliminate capabilities testing.
- Eliminate credibility determinations and the approach to feedback (i.e., "material weakness" or "significant finding" as described in the Current Rule).
- Maintain, with certain revisions, key informational content requirements such as deposits; other financial information; corporate structure; key personnel; and information systems.
- Revise certain content requirements to obtain the most pertinent information on:
    - Interconnections between the CIDI and its affiliates while eliminating the need for the CIDI to identify resolution obstacles and mitigants;
    - Material loan portfolios, to narrow the requirement from the broader concept of material asset portfolios (as defined in the Current Rule); and
    - Digital services and products, by clarifying content to be reported while eliminating resolution-related and hypothetical analyses of franchise value and depositor behavior.
- Add new aspects to certain content requirements to enhance the FDIC's ability to plan and execute a resolution, including:
    - Information to better understand the CIDI's organization, such as an organizational chart and information about non-controlling interests in limited liability companies, partnerships, and joint ventures or similar arrangements;
    - A mapping of the CIDI's information technology architecture, and information on processing cut-off times for deposit and loan operations;
    - Certain deposit information important for resolution execution, such as a list of deposit products; sweep account information; and any controls to restrict funds

movement to or from accounts in foreign branches; and

  - Certain information on qualified financial contracts ("QFCs") to understand the risks managed using QFCs.

- Implement a transition such that initial submissions under a final rule would be due no earlier than 270 days after the final rule's effective date.

CIDI Filing Exemptions

The FDIC signaled in the FIL that Group B CIDIs that are scheduled to file Informational Filings or interim supplements on or before October 1, 2026 would be exempted from filing submissions in 2026. The FIL also signaled that the FDIC would exempt any CIDIs from filing submissions that become subject to the Current Rule prior to the effective date of a final rule. Staff recommend that the Board formally authorize the filing exemptions signaled in the FIL.

Additionally, given the ongoing rulemaking process to revise the Current Rule, staff recommend exempting the following entities from filing submissions under the Current Rule in 2027: (1) all presently-designated CIDIs; and (2) any IDIs that become CIDIs prior to the effective date of a final rule.

Significance Determination

In accordance with Executive Order 12866, the FDIC sent its significance memorandum to the Office of Information and Regulatory Affairs (OIRA) recommending that the Proposal be considered a significant regulatory action. OIRA determined that the Proposal is a significant regulatory action under section 3(f)(1) of EO 12866.

VI. CONCLUSION

Staff request that the Board adopt the recommendations set forth above.

STAFF CONTACTS

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ATTACHMENTS:

Attachment 1: Group B CIDIs scheduled to file Informational Filings on or before October 1, 2026 and Group B CIDIs scheduled to file interim supplements on or before October 1, 2026

Attachment 2: Current CIDIs

Attachment 1

Group B CIDIs Scheduled to File Informational Filings due on or before October 1, 2026:

- BOKF, N.A.
- Southstate Bank, N.A.
- UMB Bank, N.A.

Group B CIDIs Scheduled to File Interim Supplements due on or before October 1, 2026:

- CIBC Bank USA
- City National Bank
- East West Bank
- Flagstar Bank, N.A.
- Valley National Bank
- Zions Bancorporation, N.A.

Attachment 2

List of Current CIDIs (CIDIs with $50 billion or more in total assets as of 1Q26)

1. Ally Bank
2. American Express N.B.
3. Banco Popular de Puerto Rico
4. Bank of America N.A.
5. BMO Bank N.A.
6. BOKF, N.A.
7. Capital One N.A.
8. Charles Schwab Bank SSB
9. CIBC Bank USA
10. Citibank N.A.
11. Citizens Bank N.A.
12. City National Bank
13. Columbia Bank
14. East West Bank
15. Fifth Third Bank N.A.
16. First Horizon Bank
17. First-Citizens Bank & Trust Co.
18. Flagstar Bank N.A.
19. Frost Bank
20. Goldman Sachs USA
21. HSBC Bank USA N.A.
22. Huntington N.B.
23. JPMorgan Chase Bank N.A.
24. KeyBank N.A.
25. Manufacturers & Traders Trust Co.
26. Morgan Stanley Bank N.A.
27. Morgan Stanley Private Bank N.A.
28. Old National Bank
29. Pinnacle Bank
30. PNC N.A.
31. Regions Bank
32. Santander Bank N.A.
33. SouthState Bank, N.A.
34. State Street Bank & Trust Co.
35. Synchrony Bank
36. TD Bank N.A.
37. The Bank of New York Mellon
38. The Northern Trust Co.
39. Truist Bank
40. UBS Bank USA
41. UMB Bank, N.A.
42. U.S. Bank N.A.
43. USAA Federal Savings Bank
44. Valley National Bank
45. Webster Bank, N,A.
46. Wells Fargo Bank N.A.
47. Western Alliance Bank
48. Zions Bancorporation, N.A.